

as he does not participate or disrupt the examination.

Ruling

Defendant Mario Valencia Madrigal (“Defendant”) Motion to Compel Plaintiff Kyle Gardner (“Plaintiff”) to attend and appear at an Independent Medical Examination (“IME”) with Steven McIntire, MD for a neurological examination is **granted** in part and **denied** in part as set forth herein.

1. Plaintiff’s two objections to the independent medical examination are **overruled**.
2. Plaintiff is ordered to undergo an IME / mental examination with Dr. Steven McIntire, and is ordered to appear at a mutually available date and time no later than thirty days from the date of this order. The examination shall take place in Dr. McIntire’s office and shall be within 75 miles of Plaintiff’s home, and shall continue from day-to-day until complete, and shall not take longer than eight (8) hours over two consecutive days.
3. Dr. McIntire is permitted to take the medical history of Plaintiff, including any history of past neurological or physical injuries that preceded the subject incident and that resulted from the subject incident.
4. Plaintiff’s counsel may be present at the examination in accordance with Section 2032.510(a) and may audio record the entire examination. However, Plaintiff’s counsel may not video record the proceedings and may not interfere with the neurological examination.
5. Counsel shall meet and confer and take necessary and proper steps to implement this order forthwith.
6. Defendant’s counsel is ordered to prepare a proposed order that conforms to the ruling, attaching a copy of this tentative ruling no later than five (5) court days from the date of this hearing.

18. 9:01 AM CASE NUMBER: C23-02118

CASE NAME: LISA MALEK-ZADEH VS. WEST COUNTY WASTEWATER DISTRICT

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION RESPONSES FROM DEFENDANT WEST COUNTY WASTEWATER DISTRICT**

FILED BY: MALEK-ZADEH, LISA

TENTATIVE RULING:

Summary

Plaintiff Lisa Malek-Zadeh (“Plaintiff”) Motion to Compel Further Deposition Responses from Director Cheryl Sudduth of Defendant West County Wastewater District (“Defendant” or “District”) is **granted** in part as set forth herein.

Background

In this case, Plaintiff alleges that she was employed by the West County Wastewater District, a public agency, from 2016 until March 7, 2023. In early 2018, the District’s Board of Directors appointed Plaintiff as the Interim General Manager until December 2018, when she was hired as the permanent General Manager. Plaintiff then alleges that the Board of Directors had wrongfully terminated her on March 7, 2023.

On August 21, 2025, Plaintiff started the deposition of District Director Cheryl Sudduth. In that deposition, the District's Counsel objected to any questions asked of Director Sudduth that concerned the performance evaluation of the Plaintiff that occurred in a closed session meeting on November 17, 2022.

On November 4, 2025, Plaintiff Lisa Malek-Zadeh ("Plaintiff") filed a Motion to Compel Further Deposition Responses from Defendant West County Wastewater District ("Defendant" or "District"). The Motion was accompanied by a Memorandum of Points and Authorities, Declaration of Counsel Robert Salinas, Declaration of Plaintiff, and a Separate Statement.

The Motion seeks to compel further responses to deposition questions related to questions which were asked of Deponent Cheryl Sudduth on August 21, 2025 pertaining to matters that occurred in the closed session meeting of the Board of Directors on November 17, 2022 pertaining to the public employee performance evaluation of the Plaintiff.

The Motion also seeks further deposition testimony presumably of Director Sudduth pertaining to closed sessions for Plaintiff's performance evaluations conducted on December 19 and 21, 2022 and February 10, 2023, and on March 6, 2023. These questions were not asked and a record is absent any specific questions that were asked and objected to regarding the closed sessions for these dates.

On January 19, 2026, the District filed an opposition to the Motion, asserting, generally, rules that govern closed session meetings of a local government body under the Ralph M. Brown Act., Gov. Code § 54950, et. seq. The District advances arguments that closed session meetings are strongly inferred to be confidential, and may only be disclosed via (1) in camera review where there is an alleged violation of the Brown Act, or (2) in camera review and disclosure of a tape recording of a closed session where there exists a prior judgment that the agency held an unlawful closed sessions, and the court ordered to make tape recordings. Even so, such closed session discussion must be kept in confidence. The District advances other arguments which the Court has considered here.

In reply, Plaintiff claims that the District waived any claim of attorney-client privilege over any of the agendized closed session performance evaluations for Plaintiff. Plaintiff also claims that the District misstates the November 17, 2022 closed sessions, engaged in protected conduct and activity, and generally asserts that the protections of the Brown Act must yield to public policies underpinning this Fair Employment and Housing Act claim. The Court considers the positions of both parties in making this ruling.

Objection

The Court sustains the District's objection to the Plaintiff's Declaration, Paragraph 12 on the grounds that she may not waive confidentiality of the contents of a closed session meeting pursuant to Gov. Code § 54963(a). Only the District's governing body may do that. Paragraph 12 of Plaintiff's Declaration is stricken.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any

party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Motions to compel further answers to deposition questions are governed by Cal. Code of Civ. Proc. § 2025.480, which states that if a deponent fails to answer any question.... The party seeking discovery may move for the court for an order compelling that answer." Moreover, Cal. Code of Civ. Proc. § 2025.480(i) states, "If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition." Subsection 2025.460(a) states that "The protection of information from discovery on the ground that it is privileged or that it is a protected work product under Chapter 4 (commencing with Section 2018.010) is waived unless a specific objection to its disclosure is timely made during the deposition.

In balancing the Plaintiff's right to discovery of facts that may lead to the discovery of admissible evidence, with a public agency's compliance with the open meeting provisions of the Ralph M. Brown Act ("Brown Act"), Gov. Code § 54950, et. seq, the Court takes notes that the Brown Act requires the governing boards of local agencies to conduct their business in public meetings, except as authorized by statute. The Brown Act provides certain exceptions to this public meeting requirement. If a board takes measures conforming to certain procedural requirements, it is permitted to hold a closed meeting, as relevant here, "to consider the appointment, employment, evaluation of performance, discipline, or dismissal of a public employee" Section 54957. " It is also permitted to conduct a closed session to discuss the discipline, dismissal or release of a public employee. Section 54957.6.

[T]he underlying purposes of these 'personnel exceptions' are to protect the employee from public embarrassment and to permit free and candid discussions of personnel matters by a local governmental body. [W]e must construe [it] narrowly and the 'sunshine law' liberally in favor of

openness [citation]. . . ." (*San Diego Union v. City Council* (1983) 146 Cal. App. 3d 947, 955 "[T]he Legislature has drawn a reasonable compromise, leaving the majority of personnel matters to be discussed freely and candidly in closed session, but permitting an employee to request an open session to defend against specific complaints or charges brought against him or her by another individual and thus to clear his or her name." (*Bell v. Vista Unified School Dist.* (2000) 82 Cal. App. 4th 672, 682. In addition, boards are not permitted to meet in closed session to discuss or take action "on proposed compensation" of a public employee, "except for a reduction of compensation that results from the imposition of discipline." (§ 54957.) citing to *Duval v. Board of Trustees* (2001) 93 Cal. App. 4th 902, 908-909.

Additionally, In *Kleitman v. Superior Court* (1999) 74 Cal.App.4th 324, the plaintiff, Wesley, brought an action alleging Brown Act violations based on closed sessions whose content allegedly exceeded the agenda notice. *Id.* at 328. The *Kleitman* court found that although there was no express confidentiality of closed-session proceedings, it was strongly implied, due to the Brown Act procedures covering litigation over Brown Act violations and closed-session minutes. (*Ibid.*, 74 Cal.App.4th at 332.) The court concluded that the agency could not be compelled to recount what was said in the closed session in order to determine if there was a Brown Act violation. (*Ibid.*, 74 Cal.App.4th at 334-335.)

The Brown Act was amended in 2002 after *Kleitman* and *Duval* to add new Gov. Code § 54963, which now states:

(a) A person may not disclose confidential information that has been acquired by being present in a closed session authorized by Section 54956.7, 54956.8, 54956.86, 54956.87, 54956.9, 54957, 54957.6, 54957.8, or 54957.10 to a person not entitled to receive it, unless the legislative body authorizes disclosure of that confidential information.

(b) For purposes of this section, "confidential information" means a communication made in a closed session that is specifically related to the basis for the legislative body of a local agency to meet lawfully in closed session under this chapter.

In weighing the authorities presented, and based upon the facts presented by the parties in this case, the Court is not persuaded that the Brown Act's provisions, which relate to the conduct of a legislative body's requirement to hold open meetings, is sufficient to deny Plaintiff's right to obtain testimony from Director Sudduth about her performance evaluation, and the contents of the closed session. To do so would deprive Plaintiff of the right to discover facts that may lead to the discovery of admissible evidence in this wrongful termination case. However, the Court must be cautious about setting precedence that would render the statutory confidentiality of a closed session meaningless. In considering the foregoing, and to balance the competing interests of both Parties consistent with the law, the Court finds good cause to make the following ruling.

Ruling

1. Plaintiff's Motion to Compel further deposition testimony of Director Cheryl Sudduth is **granted** in part pursuant to Cal. Code of Civ. Proc. § 2025.480(i) subject to the conditions of this order. The District's objections based on the application of a privilege, or the operation of the Brown Act are **overruled**, except as set forth herein regarding the

procedures to maintain confidentiality of the testimony.

2. The District shall make available Director Sudduth for further deposition to answer questions which were subject of this motion no later than 30 days from the date of this order. The deposition of Director Sudduth shall occur day-to-day until completed, and shall start no earlier than 9:00 a.m. on weekdays, excepting Court holidays and weekends, and shall not exceed six (6) hours per day.
3. The scope of the deposition questions shall relate only to the closed session meetings pertaining specifically to the public employee performance evaluation, and public employee discipline/dismissal/Release or of Plaintiff held on November 17, 2022, November 30, 2022, December 19, 2022, December 21, 2022, February 10, 2023 and March 6, 2023.
4. The Court determines and orders that the testimony of Director Sudduth is **confidential** pursuant to Gov. Code § 54963(b) and shall not be disclosed to the public, or to any third party outside of this litigation, except as permitted by this Court. The Parties are ordered to meet and confer to prepare and e-file a stipulated protective order that prevents disclosure of the deposition testimony and related transcripts / video recordings of Director Sudduth except as necessary and proper for the prosecution of this case. Said protective order shall be e-filed with the court no later than thirty (30) days from the date of this order.
5. The Court orders that the deposition testimony and transcript of Director Sudduth shall be sealed pursuant to Rules of Court Rule Nos. 2.550 and 2.551. Counsel shall meet and confer and take all steps necessary and proper to implement this order.
6. Plaintiff's Counsel is directed to prepare and e-file an order conforming to this ruling, attaching the tentative ruling, no later than ten (10) court days from the date of this hearing, approved as to form by the District's Counsel.